From:	Daniel Faucitt <dan@regima.com>
Sent:	09 November 2025 16:41:01
To:	Natan Back <Natan@ianlevitt.co.za>; Jacqui Faucitt <jax@regima.zone>
CC:	Ian Levitt <ian@ianlevitt.co.za>; Doron Block <block@rivoniaadvocates.co.za>
Subject:	Re: FAUCITT MATTER - MEMORANDUM
Attachments:	Uniform Rules of Court [F].pdf

Dear Natan and All

I will take a look but in the meantime here are some clarifying points regarding terms of art from my industry (Engineering) as distinct from Marketing jargon:

The term **"AI" (Artificial Intelligence)** is a meaningless marketing term usually referring to anything shiny with an API key that permits Client-side rendering by the host.

The real Engineering disciplines are forms of **"ML" (Machine Learning)** with two broad subcategories:

1. **Training Models** for structuring entity attributes as **Data, Information, Knowledge** graphs to reduce the loss function
2. **Inference Engines** for processing logical relations as **Deduction, Induction, Abduction** operations to reduce the search space

Your reference indicates my use of **"Engine"** may have caused some confusion. It basically means a ***"lookup database"*** eg.

- When you type **keywords** into Google and it returns results filtered by those keywords, the type of service provided is called a **"Search Engine"**.
- When you type **keywords** into Legal Databases like Searching Help | SAFLII its the same concept (see excerpt below):

Searching Help

SAFLII uses an Open Source search engine called SINO*, developed by AustLII.*

*If you have never used an **Internet search engine** before you can have SINO do most of the work for you.*

A search engine is a computer program that presents you with a list of documents that match the criteria which you specify.

You specify the criteria in the form of 'show me all documents that have the words X, Y and Z in them'.

You can narrow the criteria, for example: 'show me documents from Botswana High Court with the words X, Y and Z in them'.

*The important thing to note is that the **SINO search engine** will return to you a list of documents that contain the **words** (or phrases) that you specify.*

<u>Where Rule 42 can be found:</u>

Please find attached the **Uniform Rules of Court (where Rule 42 is elucidated)** and below inline a screenshot of the rule:

From the conditional statements it is clear that (a) refers to ***ex parte*** scenarios and the is desire relief and make application.

1. ***"The court may ... upon the application of any party affected, rescing or vary -"***
    1. ***"an order or judgement erroneously sought or erroneously granted in the absence of any party affected thereby ;"***

    ...

2. ***"Any party desiring any relief under this rule shall make application therefor ..."***

42. Variation and rescission of orders

(1) The court may, in addition to any other powers it may have, *mero motu* or upon t
of any party affected, rescind or vary—

(a) an order or judgment erroneously sought or erroneously granted in the a
party affected thereby;

[Rule 42(1)(a) substituted by GNR 235 in G. 1375 with effect from 18 February 1

(b) an order or judgment in which there is an ambiguity, or a patent error or
only to the extent of such ambiguity, error or omission;

(c) an order or judgment granted as the result of a mistake common to the p

(2) Any party desiring any relief under this rule shall make application therefor upo
parties whose interests may be affected by any variation sought.

(3) The court shall not make any order rescinding or varying any order or judgment u
that all parties whose interests may be affected have notice of the order propose

So I don't see why there would be any problem with filing such an application given the stated requirements.

My frustration mostly arises from what I perceive as an extreme reluctance on your part to make an application for relief under rule 42 when it looks to me like a fairly standard uniform rule of the court like any other.

As for the burden of proof, it requires evidence of material non-disclosure by the applicant, not the actual proof of criminal conduct itself as that would be dealt with once it is referred to the commercial crimes court.

Anyway I hope that clarifies at least a few general points.

Warm Regards

Dan

From: Natan Back <Natan@ianlevitt.co.za>
Sent: Sunday, 09 November 2025 14:12
To: Jacqui Faucitt <jax@regima.zone>; Daniel Faucitt <dan@regima.com>
Cc: Ian Levitt <ian@ianlevitt.co.za>; Doron Block <block@rivoniaadvocates.co.za>
Subject: FAUCITT MATTER - MEMORANDUM

Dear Jacqui and Daniel,

Please find a memorandum for your consideration.

Kind regards,

NATAN BACK
CANDIDATE ATTORNEY

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